

25STCV17247 25STCV17247

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-06

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Case Number: 25STCV17247 Hearing Date: July 6, 2026 Dept: 9

The Court hereby

distributes a tentative Minute Order for the July 6, 2026 ISC. The parties are welcome to provide input and propose modifications to any aspect of the minute order at the Initial Status Conference. If all parties submit on the tentative minute order prior to the commencement of the July 6, 2026 ISC, the Court will adopt the tentative minute order, and the parties need not appear. However, if there is any matter that any party would like to discuss, including any proposed change to this tentative minute order, that party should not submit on this tentative but instead appear at the ISC to raise the issue.

To avoid a failure to appear, please make sure to check in with Department 9 court staff and wait for the case to be called unless you receive notification that all parties have submitted on the tentative minute order.

CARLOS

AVILA vs CATHOLIC HEALTH INITIATIVES, et al., 25STCV17247

[TENTATIVE] MINUTE
ORDER

The Complaint

fails to specify which causes of action are individual claims and which are class claims. By no later than August 3, 2026, Plaintiff must file and serve a statement specifying whether each cause of action is an individual claim or a class claim.

The operative

complaint currently does not include any claim for civil penalties pursuant to

Labor Code section 2699 (PAGA penalties).

By no later than August 17, 2026, Plaintiff must file and serve a status report as to whether Plaintiff intends to file either a separate action for PAGA penalties or an amended complaint in the instant action adding a claim for PAGA penalties, and if so, when Plaintiff intends to file the claim for PAGA penalties (either as a complaint in a separate action or by way of amendment to the complaint in this action).

Plaintiff has filed proof of service of the operative Summons and Complaint as to certain defendants who have not timely responded to service of the operative Summons and Complaint, including DIGNITY HEALTH HOSPITAL - MERCY MEDICAL CENTER, MERCY MEDICAL CENTER-MERCED, and CATHOLIC HEALTH INITIATIVES.

The time to respond for these defendants who have been served has already lapsed.

If any Defendant fails to timely respond to the service of the operative Summons and Complaint by filing a Notice of Appearance, Plaintiff must pursue that Defendant's default with diligence.

The Court reminds the parties that ultimately, the Court may not enter default judgment in an amount exceeding the amount demanded in the Complaint. (CCP 585(b).) The Court may not grant relief not demanded in the complaint by default judgment even though that relief otherwise would have been proper. (CCP § 580(a); *Airs Aromatics, LLC v. CBL Data Recovery Technologies, Inc.* (2018) 23 Cal.App.5th 1013, 1018 (default judgment for sum in excess of that demanded in complaint is void). "It is fundamental to the concept of due process that a defendant be given notice of the existence of a lawsuit and notice of the specific relief which is sought in the complaint served upon him." (*Marriage of Lippel* (1990) 51 Cal.3d 1160, 1166 [emphasis added].) Accordingly, prior to seeking any Defendant's default, Plaintiff may wish to review the operative Complaint to determine whether the operative Complaint gives notice of the amount of damages that Plaintiff seeks to recover in the event of a default judgment; if the operative Complaint fails to do so, it may be futile for Plaintiff to seek entry of Defendant's default without first amending the Complaint to clearly state and give notice of the amount of damages that

Plaintiff is seeking to recover in the event of a default judgment. In the event that Plaintiff wishes to amend the Complaint for this purpose, the Court hereby lifts the stay to grant Plaintiff leave to file an amended complaint. If

Defendant again fails to respond upon being served with the amended complaint, a request for entry of Defendant's default on the Amended Complaint may then possibly lead to a request for entry of default judgment in an amount equal to or less than that stated in the Amended Complaint. To be clear, the Court is not ordering Plaintiff to amend the operative Complaint; if, after considering the above, Plaintiff voluntarily wishes to amend the operative Complaint to give notice of the amount of damages that Plaintiff seeks to recover in the event of a default judgment, the Court hereby grants leave for Plaintiff to do so.

By no later than August

3, 2026, Plaintiff's Counsel must file either a request for entry of DIGNITY HEALTH HOSPITAL - MERCY MEDICAL CENTER, MERCY MEDICAL CENTER-MERCED, and CATHOLIC HEALTH INITIATIVES's default or a declaration explaining the failure to seek and obtain DIGNITY HEALTH HOSPITAL - MERCY MEDICAL CENTER, MERCY MEDICAL CENTER-MERCED, and CATHOLIC HEALTH INITIATIVES's default, setting forth any and all efforts undertaken to obtain DIGNITY HEALTH HOSPITAL - MERCY MEDICAL CENTER, MERCY MEDICAL CENTER-MERCED, and CATHOLIC HEALTH INITIATIVES's default, and explaining why sanctions (including monetary sanctions of at least \$1,000) should not be imposed for failure to timely seek DIGNITY HEALTH HOSPITAL - MERCY MEDICAL CENTER, MERCY MEDICAL CENTER-MERCED, and CATHOLIC HEALTH INITIATIVES's default, in compliance with California Rules of Court, Rule 3.720. Failure to comply by August 3, 2026 may result in the Court setting an OSC re sanctions.

The parties are to

file a Joint Status Report by no later than August 24, 2026. The Joint Status Report re Defendants' and Cross-Defendants' Responsive Pleadings must: (1) identify the filing date of the operative Complaint and each operative Cross-Complaint, and (2) for the operative Complaint and each operative Cross-Complaint, list every Defendant named in the operative Complaint and every Cross-Defendant named in every operative Cross-Complaint. Next to each Defendant and Cross-Defendant, the Joint Status Report must identify:

(a) the date on

which that Defendant/Cross-Defendant has filed a Notice of Appearance or otherwise responded to the operative Complaint/Cross-Complaint,

(b) if that

Defendant/Cross-Defendant has not timely responded to service of the summons and complaint/cross-complaint and if that Defendant's/Cross-Defendant's default has been entered, then the date on which that Defendant's/Cross-Defendant's default was entered, or

(c) if that

Defendant/Cross-Defendant has not timely responded to service of the summons and complaint/cross-complaint and if that Defendant's/Cross-Defendant's default has not been entered, then the date on which proof of service of the operative summons and complaint/cross-complaint on that Defendant/Cross-Defendant was filed.

The previously

imposed stay on discovery remains in effect.

The Initial Status

Conference is continued to August 31, 2026 at 8:30 am. The parties are to file a Joint Initial Status Conference Report by no later than August 24, 2026 in compliance with the Court's Initial Status Conference order.

Plaintiff's

Counsel is ordered to give notice to all other parties and file proof of service of such.